

11.7.2 Conduct of appellant

The conduct of the appellant may render the reimbursement of the appeal fee not equitable even if a substantial procedural violation occurred (J 4/09; see also T 1500/10).

a) Reimbursement held not to be equitable

In J 22/85 (OJ 1987, 455) the board did not consider a reimbursement of the appeal fee to be justified because the appellant had failed to provide the Receiving Section with the evidence subsequently submitted in the appeal proceedings.

In T 167/96 the impugned decision did not meet the minimum requirements for a reasoned decision. Although there was no doubt that this lack of reasoning amounted to a substantial procedural violation, the board did not consider that a refund of the appeal fee was equitable. The appellant had availed himself of the appeal procedure to file necessary amendments which the opposition division had sought in vain over a period of years to elicit from him (see also T 908/91).

In J 18/96 (OJ 1998, 403) the Receiving Section had failed to observe the provisions concerning examination on filing. Although the appeal was allowed on the ground, *inter alia*, of a procedural violation, the reimbursement of the appeal fee was not equitable because the appellants themselves had contributed to the failure of the proceedings before the Receiving Section.

In J 4/09 the board said that, as a rule, an applicant could be regarded as behaving inequitably if it made no use of opportunities to participate in the initial proceedings. In this case, it had not reacted to the Receiving Section's communication; only in its statement of grounds for appeal had it drawn attention to an obvious inconsistency.

In T 1216/02 the board held that, albeit for reasons outside the knowledge and control of the examining division, the refusal decision had been based on evidence on which the applicant had not had an opportunity – viewed objectively – to present his comments. This constituted an objective substantial procedural violation under R 67 EPC 1973. However, the board did not deem reimbursement of the appeal fee equitable, because the appellant should have facilitated further substantive examination in the event of remittal or interlocutory revision by including in his statement of grounds of appeal a substantive response to the examining division's communication, based on the document which, at the time when the appeal was filed, he had known to be correct.

In T 427/03 the decision (to revoke the patent) under appeal was set aside by reason of a substantial procedural violation – no reference to any Article or Rule of the EPC as the legal basis for the revocation, no reasoning is provided to justify the revocation. However, the board did not find it equitable to reimburse the appeal fee as the **appellant had contributed to the situation** by filing a new set of claims 16 months after the announcement of the opposition division at the end of the oral proceedings that the patent could be maintained in amended form on the basis of the last set of claims put forward at the end of the oral proceedings instead of providing an adapted description as requested.

In T.1500/10 the board held that if oral proceedings took place at the instance of the EPO because it considered this to be expedient under Art. 116(1) EPC and the duly summoned party does not attend them without serious reasons, this conduct might have the consequence that it would not be equitable to reimburse the appeal fee.

In T.674/12 the board held that the appellant, by filing different unclear requests, did not help to expedite the proceedings and contributed to the fact that the decision of the examining division was based on a request which was no longer in the proceedings. The board considered the reimbursement of the appeal fee not to be equitable.

In T.1750/14, the appellant's representatives requested a postponement of the final date (under R. 116(1) EPC) repeatedly and separately from their request to postpone the date for oral proceedings. The specific reasons for not allowing any postponement of the final date – regardless of the refusal of the request for postponement of the date for oral proceedings – were not addressed in the decision of the examining division. The board held that the examining division had committed a substantial procedural violation. Nevertheless the board held that the applicant – and in particular its professional representative – must or should have known, in view of the last sentence of R. 116(1) EPC that it is generally not guaranteed that any written submission is automatically admitted into the proceedings before the EPO for the sole reason that it is filed prior to the final date, nor is it entirely unlikely that a submission may be admitted at the department's discretion when filed after that date. The applicant could have followed the invitation from the examining division and attempted to file, for example, amended sets of claims with the aim of overcoming the objections raised in the summons. This, however, was not done by the applicant of its own volition. In the board's view, such procedural behaviour spoke against regarding the reimbursement of the appeal fee as equitable within the meaning of R. 103(1)(a) EPC. A party cannot gain a procedural advantage from an omission of its own.

b) Reimbursement held to be equitable

In T.281/03 of 17 May 2006 the board held that reimbursement of the appeal fee was equitable despite the fact that the appellant had continuously delayed his case on inventive step until the last moment. The board noted that delaying detailed substantiation of the ground of inventive step raised in the notice of opposition until the last moment of opposition proceedings should be avoided if possible, since it created an unexpected situation for the other parties and the opposition division. However, the board noted that the case in hand was special, not just in that the inventive step argument was based on the same document as the novelty argument, but that the novelty of the features depended on how D1 was interpreted as a whole. The board held that it was not efficient to expect an opponent to provide a multitude of speculative arguments covering each possibility, nor did it seem sensible to the board to place a formal requirement to provide at least one argument, which may turn out to be completely wrong.

11.8. Reimbursement in full under Rule 103(1)(b) EPC

Under the EPC 1973, when appeal proceedings were terminated by the withdrawal of the appeal, R. 67 EPC 1973 was in general not applicable (see J 12/86, OJ 1988, 83; T 41/82, OJ 1982, 256; T 773/91; J 30/94; T 372/99; T 543/99; T 1216/04; T 552/07; for exceptions to this rule in case of a violation of the principle of the protection of legitimate expectations see J 30/94 and T 308/05).

Under the EPC 2000, however, the appeal fee is reimbursed if the appeal is withdrawn before the filing of the statement of grounds of appeal and before the period for filing that statement has expired (R. 103(1)(b) EPC). For cases where this provision was first applied, see T 1495/08, T 2052/08, T 1822/09.

For a case in which the patent application was withdrawn after the expiration of the period for filing the statement of grounds and the appeal fee was thus not reimbursed, see T 683/08. The board in T 1613/08 held that R. 103(1)(b) EPC did not confer any discretion on the boards to excuse missing the end of the period even by as short a time as one day.

In T 193/20 the board held that the withdrawal of the appeal must be expressed by an explicit and absolutely clear statement. The appellant's statement that it had "decided not to file the Grounds of Appeal", even in view of the request for reimbursement of the appeal fee in accordance with R. 103(1)(b) EPC, merely conveyed the appellant's intention not to file the statement of grounds of appeal, it did not imply an unambiguous withdrawal of the appeal. The filing (or non-filing) of the statement of grounds of appeal and the withdrawal of an appeal are separate, distinct procedural steps. See also T 2704/16.

11.9. Revised Rule 103 EPC on partial reimbursement of the appeal fee

An amended version of R. 103 EPC entered into force on 1 April 2020. It introduced two new levels of partial reimbursement of the appeal fee: 75%, on which see below in chapter V.A.11.10. on R. 103(2) EPC; and 25%, on which see below in chapter V.A.11.12. on R. 103(4) EPC. These are in addition to reimbursement in full or of half the appeal fee under R. 103(1) EPC (see above in chapter V.A.11.8.) and R. 103(3) EPC (see below in chapter V.A.11.11.) respectively.

11.10. Partial reimbursement (75%) under Rule 103(2) EPC

The appeal fee is reimbursed at 75% under R. 103(2) EPC if, in response to a communication from the board indicating its intention to start substantive examination of the appeal, the appeal is withdrawn within two months of notification of that communication.

11.11. Partial reimbursement (50%)

11.11.1 Partial reimbursement under former Rule 103(2) EPC

R. 103(2) EPC as amended on 13 December 2013 (CA/D 16/13; OJ 2014, A3) was amended by the decision of the Administrative Council of 12 December 2019 (CA/D 14/19; OJ 2020, A5) as of 1 April 2020. The decisions set out below concern R. 103(2) EPC as in force prior to 1 April 2020. It differs from current R. 103(3) EPC only in that the time limit under R. 103(3)(a) EPC is now "within one month of notification of a communication issued by the Board of Appeal in preparation for [the] oral proceedings" rather than "at least four weeks before [the date of oral proceedings]".

According to R. 103(2) EPC (as prior to 1 April 2020), the appeal fee was reimbursed at 50% if the appeal was withdrawn: after expiry of the period under R. 103(1)(b) EPC; and at least four weeks before the date for oral proceedings (where one had been set) or before expiry of the period set by the board for filing observations in any communication inviting the appellant to file observations. This version of the provision applied to appeals pending on 1 April 2014 and to appeals filed thereafter, until 1 April 2020, from which date the current R. 103 EPC applied to appeals pending at that date and to appeals filed after that date.

In T 1086/09 the board held that a letter received on 28 March 2014 stating that the appeal should be withdrawn "hereby" would mean that the appeal was withdrawn on 28 March 2014, and thus no longer pending on 1 April 2014. In T 370/11 the board held that the 50% was to be calculated on the basis of the appeal fee actually paid, and not on the basis of the rate of the appeal fee applicable on the date of withdrawal or reimbursement.

In T 1402/13 of 31 May 2016, the board stated that under R. 103(1)(b) and (2) EPC (as prior to 1 April 2020) the termination of appeal proceedings caused by a loss of rights due to the non-payment of renewal fees could not be equated to a declaration of withdrawal of the appeal. This result was also supported by the travaux préparatoires (CA/90/13 Rev. 1), which explicitly required the appellant to make a procedural declaration. In order to claim entitlement to reimbursement under R. 103(2) EPC (as prior to 1 April 2020), the appellant was required, at a time when its application was still pending, to make a procedural declaration that left no doubt that withdrawal of the appeal was intended. As this was not the case, the request for reimbursement of the appeal fee was rejected.

In T 265/14 the appeal had been withdrawn after expiry of the period set by the board in a first communication inviting the party to file observations under R. 100(2) EPC but before expiry of the period set in a second communication. The board held that R. 103(2)(b) EPC (as prior to 1 April 2020) was not to be interpreted as definitively ruling out reimbursement of 50% of the appeal fee where no observations were filed within the period set under R. 100(2) EPC. If a board then set a new period for filing observations, it thereby gave the appellant a fresh opportunity to withdraw the appeal, with the effect of reducing the fee, within that period. So the board concluded that issuing a second invitation under R. 100(2) EPC was to be treated as equivalent to setting a date for oral proceedings after expiry of the period set in the first invitation, which likewise reopened the possibility of the

reimbursement of the appeal fee under R. 103(2)(a) EPC (as prior to 1 April 2020). That reimbursement was possible in those circumstances supported the view that R. 103(2) EPC (as prior to 1 April 2020) as a whole was to be interpreted broadly in the light of its object and purpose and that both its scenarios could be treated in the same way. The rationale of T 265/14 was also followed in T 110/18 and T 2044/16.

In T 683/14 the examining division committed a substantive and not a procedural error. After the applicant filed an appeal against the decision to refuse the European patent, the examining division rectified their decision to refuse. The request for reimbursement of the appeal fee at 50% under R. 103(2) EPC (as prior to 1 April 2020) was refused on the grounds that by rectifying the decision the examining division had set the decision under appeal aside and had allowed the appeal. The board stated that as such the applicant's request for the withdrawal of its appeal had no object and that in the absence of a pending appeal that might be withdrawn, R. 103(2) EPC (as prior to 1 April 2020) did not apply.

In T 1548/15 the board ordered that the appeal fee be reimbursed at 50% pursuant to R. 103(2)(a) EPC (as prior to 1 April 2020). The agreement by the appellant (patent proprietor) to terminate the appeal proceedings against the decision of the opposition division to revoke the European patent (in accordance with R. 84(1) EPC), after the patent had in the meantime lapsed in all designated contracting states, was equivalent to a withdrawal of the appeal.

11.11.2 Partial reimbursement (50%) under Rule 103(3) EPC

The appeal fee is reimbursed at 50% if the appeal is withdrawn after expiry of the period for filing the the statement of grounds of appeal, provided withdrawal occurs: (a) if a date for oral proceedings has been set, within one month of notification of a communication issued by the board in preparation for these oral proceedings; (b) if no date for oral proceedings has been set, and the board has issued a communication inviting the appellant to file observations, before expiry of the period set by the board for filing observations; (c) in all other cases, before the decision is issued.

11.12. Partial reimbursement (25%) under Rule 103(4) EPC

Under R. 103(4)(a) EPC, where a date for oral proceedings has been set, 25% of the appeal fee is reimbursed if the appeal is withdrawn later than one month after notification of a communication issued by the board in preparation for these oral proceedings but before the decision is announced at oral proceedings.

Under R. 103(4)(b) EPC, where no date for oral proceedings has been set, and the board has issued a communication inviting the appellant to file observations, 25% of the appeal fee is reimbursed if the appeal is withdrawn after expiry of the period set by the board for filing observations but before the decision is issued.

In T 1369/18 the patent proprietor had filed an appeal against the interlocutory decision of the opposition division, which had decided that, on the basis of the second auxiliary request, the patent in suit met the requirements of the EPC. After the board issued its